



WashU

Negotiations and Conflict Management

Olin EMBA60

OB 727, Spring 2025

Course details:

- May 1st, 2nd, and 3rd from 8:30am-12:30pm
- In-person, three credits
- Meetings take place at the Knight Center, office hours by appointment

Description

- Managers spend the majority of their time negotiating — from schedules and vacation time to resource allocations to mergers and major policy decisions and their implementation. Skillful negotiation is a critical component of the toolbox of the successful manager. The purpose of this course is to improve students' abilities to diagnose conflict situations and to analyze, plan and conduct negotiations. The course material addresses negotiation as an effective means for implementing decisions and strategies and resolving conflict in a variety of settings. Course format will involve simulated negotiation and experiential exercises.

Learning Goals

As a result of this course, you should:

- Understand evidence-based fundamental frameworks about the structure of negotiation, which is defined as “mutual decision-making about how to allocate scarce resources.” The far-reaching nature of this definition means that it includes everything from multi-million dollar transactions to dividing work assignments and managing schedules. In the real world most resources are scarce, and we need to make difficult decisions about how to meet everyone’s needs.
- Develop personal skills in negotiating effectively, as facilitated by experiential learning.
- Develop self-awareness about your own unique negotiation style, including its strengths and weaknesses. With this deepened self-awareness, you should establish goals for lifelong learning.

Texts, Materials, and Supplies

- The EMBA office will distribute required materials to you:
 - Course pack of readings
 - Book: Lax, D. A. and Sebenius, J. K. (2006). 3-D Negotiation: Powerful Tools to Change the Game in Your Most Important Deals. Harvard Business School Press.
 - Note that, due to the intensive nature of our course, all readings should be completed in advance of the first course session.
- Digital content will be posted to our Canvas site.

Course Requirements & Grading

- Our course is graded on a scale of High Pass, Pass, Low Pass, and No Pass. This system is designed to maximize a collaborative environment free of unproductive competition while balancing accountability and feedback. All individual assignments in this course use this scale.
- Late work will be accommodated without penalty on an individual basis considering special circumstances. Note that lengthy extensions are more burden than favor due to the fast pace of the EMBA program.
- There are no assistant instructors in this course, and all grading is done by Prof. Elfenbein.
- Academic integrity is critical for our learning experience. For deliverables there should be neither collaboration nor use of generative AI (e.g., ChatGPT) for any reason.

Assignments and Homework

- Pre-course negotiations self-assessment (not graded)
 - Several weeks before class you will receive a link through Qualtrics to complete a negotiations self-assessment, which will take a maximum of one quiet hour to complete.
- Attendance and participation (20%)
 - As with all EMBA courses, full attendance is required. Participation involves moving a discussion forward with thoughtful on-topic contributions that build on what has come before while adding novel content.
 - Preparation is key. Given the experiential learning components, if you are unprepared then not only do you miss out but your randomly selected partner misses out as well.
 - Note that the results of in-class experiential exercises are not graded. It is trivially easy to cheat on these by sharing confidential materials and then no one learns anything. Instead, put your best foot forward for the sake of glory!
 - Please arrive with a thick skin and sense of humor for the simulated negotiations. Pro tip: If you laugh at yourself then by definition no one can laugh *at* you, they can only laugh *with* you.

- Peer coaching (not graded)
 - After class at a time of mutual convenience, your assigned group of 3-4 individuals for the “Quads” exercise will meet for a peer coaching session. During class each person in these groups has a 1:1 exercise with each other person, and therefore each person has direct experience with each other. Groups meet for approximately 20 minutes per member. The discussion agenda is led by the member during their turn, and should include discussion of strengths, weaknesses, and unique style, suggestions for further development, and offer them an opportunity to ask questions.
- “Cheat sheet” (20%)—due three weeks after class ends
 - This assignment is for you to create your own one-pager of takeaways that would be useful for you far in the future when conducting an important negotiation—when this class is just a memory, just a really fond, distant memory. Every person has their own unique takeaways from the same material. These usually include the key frameworks but also any content you find particularly noteworthy, surprising, or personally relevant.
- Reflection memo (60%)—due three weeks after class ends
 - This is an essay that brings together your multiple sources of learning in this course. The mundane: 7-9 pages, double-spaced, 12-point font, 1-inch margins, no skipped lines. The sublime: Where are you, where do you want to be, and how are you going to get there?
 - What did you tend to do well in the negotiation exercises? Where did you tend to struggle?
 - What would you do differently in the future to be a more effective negotiator?
 - How did your impression of the negotiation change when based only on your own immediate experience vs. after the in-class debrief during which you learned about the underlying structure?
 - How do the concepts presented in the lectures or readings enrich your understanding of your own negotiation style?
 - What did you learn from speaking about the negotiation afterwards with your former ‘opponents’? Did anything they said surprise you?
 - For this reflection, make sure that you include (but are not limited to) each of the following sources of data:
 - Classroom experiential learning
 - Classroom lectures, cases, and discussions
 - Self-assessment individualized feedback report
 - Partner confidential feedback report
 - Peer coaching session
 - In grading memos, I look for a depth of analysis with self-reflection and insight, which does more than recap the play-by-play of our experiential exercises, and that sets out a path for lifelong learning.
 - Reminder that artificial intelligence should not be used in this assignment—this is your chance to pull it all together.

- Note that this assignment incorporates observations from peer coaching, and so it can only be written after your group meets.

Course Schedule

Date	Topics/Assigned Readings/Homework	Major Assignments and Deadlines
Pre-work	• Pre-course negotiations self-assessment (to be emailed after previous EMBA session) • Complete all readings: book and course pack (to be provided after previous EMBA session) • View documentary “Final Offer” (link below), and discuss with study group • Conduct brief negotiation “Synertech-Dosagen” with partner (to be emailed closer to class), enter results in google form • Disney case discussion with study group • Prepare with team for the “International Lodging Merger” to take place during class (to be emailed closer to class) • Prepare two exercises to be used in class (to be emailed closer to class)	Complete before class
Day 1	• Introduction • Debrief first exercise (“Synertech-Dosagen”) • Lecture: Win-lose (aka “distributive”) negotiation • Interactive discussion: Negotiation style • Experiential exercise: Quads ○ Note that this may spill over slightly into lunch	Enter outcomes of Quads exercise into Qualtrics (link will appear in your Qualtrics account)
Day 2	• Lecture: Win-win (aka “integrative”) negotiation • Experiential exercise: “International Lodging Merger” ○ Conduct and debrief • Lecture: Cross-cultural negotiation • Experiential exercise: “Harborco” ○ Note that this may spill over slightly into lunch	Enter outcomes of International Lodging Merger and Harborco exercises into google sheet (link will appear on Canvas)
Day 3	• Discussion: “Final Offer” documentary • Lecture: Power in negotiations • Experiential exercise: debrief “Harborco” • Lecture: Multi-party negotiation • Case: Disney’s land acquisition strategy (Parts A and B) • Lecture: Ethics in negotiation • Wrap-up	
After course	• Peer coaching session	“Cheat sheet” and Reflection memo

Case and documentary preparation:

- Disney (A): From Disneyland to Disney World—Learning the art of land assembly. Harvard Business School Publishing, 9-898-018. And Disney (B): The third battle of Bull Run. Harvard Business School Publishing, 9-898-019.
 - Do you believe that Disney's negotiation strategy for opening theme parks is successful? What might you recommend they do differently?
 - Has Disney's negotiation strategy changed over the decades? If so, how?
 - Consider the various parties involved in Disney's negotiations—how were Disney's interests aligned and misaligned with each?
 - In Florida
 - In Virginia
 - What do you think of the tactics that Disney has used with communities and government officials?
- Final Offer: <https://www.youtube.com/watch?v=JYNwc0KuGTc>Links to an external site.
 - Was this negotiation a success? For whom? What could the key players have done to be more successful in this negotiation?
 - Identify the BATNA, positions, interests, reservation price, target, and sources of power (to the extent you can) for the following parties:
 - Bob White (Canadian UAW negotiator)
 - Owen Bieber (UAW international)
 - Rod Andrews (GM negotiator) & Roger Smith (CEO, GM)
 - Identify negotiation strategies that you thought were particularly effective or ineffective.
 - How many different negotiations was Bob White conducting? In what ways were his interests aligned and unaligned with each party?

University-Wide Guidelines & Policies

The site below contains detailed information about a range of university policies

<https://provost.wustl.edu/syllabi-resources-and-template-language-danforth-campus/>

- Academic Integrity
- Bias Reporting and Support System (BRSS)
- Center for Diversity and Inclusion (CDI Reporting Sexual Assault and Harassment)
- Confidential Resources for Instances of Sexual Assault, Sex Discrimination, Sexual Harassment, Dating Violence, Domestic Violence, or Stalking
- Counseling and Psychological Services
- Disability Resources (DR)
- Emergency Preparedness
- Gephardt Institute
- Preferred Name and Personal Pronouns
- Religious Holidays
- Reporting Sexual Assault and Harassment
- Statement on Military Service Leave
- The Learning Center
- The Writing Center
- Turnitin
- Unauthorized Recording and Distribution of Classroom Activities and Course Materials
- University Libraries
- WashU Cares